

25STCV30495 25STCV30495

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Case Number: 25STCV30495 Hearing Date: August 4, 2026 Dept: 224

Castillo v. General Motors, LLC

TENTATIVE RULING

The Court takes the Demurrer and Motion to Strike OFF CALENDAR as moot.

The Court sets a CMC for November 25, 2026 at 9:00 a.m.

ANALYSIS

I. INTRODUCTION

This is a lemon law case. On March 22, 2023, Plaintiffs Oscar Castillo, Goodman Service LLC, and Arturo Flores Aquilera ("Plaintiffs") entered into a warranty contract with Defendant General Motors, LLC ("Defendant") regarding a 2023 GMC Yukon XL ("Vehicle"). (FAC, ¶ 7.) Defects and nonconformities manifested substantially impairing the use, value, or safety of the Vehicle. (Id. at ¶ 18.)

On October 17, 2025, Plaintiffs filed a Complaint.

On December 17, 2025, Defendant filed a Demurrer and Motion to Strike to Plaintiffs' Complaint.

On July 22, 2026, Plaintiffs filed a First Amended Complaint ("FAC").

II. LEGAL STANDARD

A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but

before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. (Code Civ. Proc., § 472, subd. (a).) Filing an amended complaint prior to the

hearing will render the demurrer moot since an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading. (People ex rel. Strathmann v. Acacia Research Corp. (2012) 210 Cal.App.4th 487, 506.)

III. DISCUSSION

On December 17, 2025, Defendant filed a Demurrer and Motion to Strike to Plaintiffs' Complaint. On July 22, 2026, Plaintiffs filed a FAC. By filing on July 22, 2026, the FAC was filed beyond 9 days before the hearing on August 4, 2026. Thus, the Demurrer and Motion to Strike as to the original Complaint are moot.

IV. CONCLUSION

The Court takes the Demurrer and Motion to Strike OFF CALENDAR as moot.

The Court sets a CMC for November 25, 2026 at 9:00 a.m.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order.